

JOHN DOE
12 Sample Road, Raleigh, NC 27601

Date: _____

Sample State Licensing Agency (synthetic record holder) – Records Office
[RECORD HOLDER MAILING ADDRESS – SENDER CONFIRMS AGAINST THE AGENCY'S PUBLISHED CONTACT DETAILS]

RE: Request to conform agency records to an automatic expunction under N.C. Gen. Stat. § 15A-146(a4)

To the records office of Sample State Licensing Agency (synthetic record holder):

My name is JOHN DOE. I am writing about records your agency holds concerning me. According to my review, the following charge or charges still appear in your records: misdemeanor larceny (synthetic sample charge, dismissed). I saw the charge still showing on my own SBI right-to-review criminal record check (synthetic sample answer).

This is my account of the case: the charge or charges arose in [COUNTY AND FILE NUMBER AS SHOWN ON THE SENDER'S RECORD – SENDER COMPLETES], and the last charge reached its final disposition on [DATE OF FINAL DISPOSITION – SENDER COMPLETES FROM THE RECORD; THE AUTOMATIC WINDOW'S OUTER EDGE IS AT LEAST 210 DAYS AFTER THIS DATE]. It is my understanding that those charges were expunged by operation of law under N.C. Gen. Stat. § 15A-146(a4). I am not certifying the expunction myself; I am asking your agency to check its own records against the court's records.

By way of background: under N.C. Gen. Stat. § 15A-146(a4), certain charges are expunged by operation of law, and the clerk is not required to transmit an expunction order to other entities, so your agency may never have received notice that the expunction occurred. N.C. Gen. Stat. § 15A-150 states the notification scheme for expunctions generally, and N.C. Gen. Stat. § 15A-153 restores a person whose record is expunged to the status they occupied before the arrest, charge or conviction.

I therefore respectfully request that your agency: (1) check its own records against the court's records for the case identified above; and (2) if that check confirms the expunction, conform your agency's records to it so the expunged charge or charges no longer appear.

If your agency requires written proof that the expunction occurred before it will act, please tell me in writing what proof you require. I understand the clerk of court offers an application process for a certificate of verification of a prior expunction, and I can pursue that process if you need it.

Please send your written response to my mailing address shown above. Thank you for your attention to this request.

ENCLOSURES

- [COPY OF THE RELEVANT PAGE OF THE SENDER'S OWN RECORD CHECK OR BACKGROUND REPORT SHOWING THE CHARGE STILL APPEARING – SENDER ENCLOSES A COPY ONLY]

Sincerely,

JOHN DOE
12 Sample Road, Raleigh, NC 27601

Date signed: _____

[NOTE: The sender signs and dates this letter personally before sending.]

Prepared by the sender using LegalEase RCAP. This is not an official court form.